

OREGON STATE HOSPITAL

POLICY

SECTION 5: Fiscal **POLICY: 4.011**

SUBJECT: Donations, Contributions,
Charitable Fundraising

POINT PERSON: Director of Volunteer Services

APPROVED: Sara Walker, MD  **DATE: JULY 25, 2024**
Interim Superintendent

SELECT ONE: ☐ New policy ☐ Minor/technical revision of existing policy
☒ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. Oregon State Hospital (OSH) will accept donations and contributions and will facilitate charitable fundraising events for the benefit of patients or designated non-profit organizations in accordance with state rules and policy and not otherwise prohibited by this or another policy.
- B. This policy applies to all staff.

II. POLICY

- A. The Volunteer Services Director or designee will manage donations, contributions, and charitable fundraising events in accordance with established processes, policies, and rules.
- B. The Volunteer Services Donations Program may accept ongoing or one-time donations or contributions, including cash, products, goods and services, for general patient benefit. All donations given to OSH or OSH patients must be approved, accepted, screened, processed, stored, or distributed by the Volunteer Services Donations Program.
 - 1. Donated items will be assessed and must be determined to be safe and usable at OSH before being accepted by the Volunteer Services Donations Program.
 - 2. If a patient's family member or friend requests a specific donation be directed to the patient's unit, the patient's interdisciplinary treatment team must approve the donation before it may be accepted.

3. The Volunteer Services Director or designee will report donations or contributions with restrictions or special requirements to the Superintendent.
- C. Staff must contact the Volunteer Services department to process donations and contributions.
1. Staff may not donate products, goods, services, including consumable foods, directly to a patient, unit, program, or department.
 2. Oregon State Hospital or staff may not request or accept any donation from a current patient, including any of a patient's personal property, consumable goods, or items such as crafts or artwork.
 3. Staff may not request a donation or contribution from an individual donor, business, organization, club or other entity unless the request is approved and coordinated through Volunteer Services according to established rules.
 4. If a staff member, unit, or department other than Volunteer Services receives a donation or contribution outside the process in this policy, the area's supervisor must contact the Volunteer Services Director or designee for direction on how to handle the donation or contribution.
- D. The Volunteer Services Director or designee may donate unusable donations to other charitable or non-profit organizations as necessary.
1. The Volunteer Services Director or designee may dispose of donations deemed inappropriate, broken, damaged, or outdated.
 2. At the discretion of the Volunteer Services Director or designee certain unusable or non-functional items may be discarded into the garbage.
 3. Donations made to OSH that are not useable or needed may not be given to staff or other individuals or re-sold for personal gain or profit.
- E. The Volunteer Services Director or designee will manage, direct, and collaborate on special events or charitable fundraising events according to processes governed by Department of Administrative Services rules. Staff may not fundraise or hold a charitable fundraising event at OSH unless the event has been approved by the Volunteer Services Director.
- F. The Volunteer Services Director or designee must approve and coordinate all donation requests or solicitations to benefit OSH or OSH patients. The Volunteer Services Director or designee may prepare a "request for donation" solicitation to select societies, businesses, or organizations on behalf of OSH programs and departments.

- G. The Volunteer Services Director or designee may receive and process abandoned patient property in accordance with applicable Oregon Administrative Rules (OAR), including OAR 141-045-0005 through 141-045-0185, and guidelines in OSH Policies and Procedures 8.037, "Patient Property and Valuables," and 6.005, "Deceased Patient."
1. If necessary, the Volunteer Services Director must verify with the Security Director, Legal Affairs Director, and Consumer and Family Services Director that there has been no contact with the patient in the last two years or less if there is a question of whether property is unclaimed or abandoned.
 2. Items inadvertently donated to the Volunteer Services Donation Program that meet criteria established in OAR 141-045-0031 must be processed by the Volunteer Services Donation Program according to guidelines in that rule.
- H. Special fund accounts may be established and managed by the Volunteer Services Director or other OSH managers with the approval of the Superintendent in accordance with Oregon Revised Statute 179.520 and other applicable regulations.
1. Funds must be expended through state limitation according to State Purchasing Rules and OSH Policy and Procedure 4.014, "Procurement of Goods, Services, and Personal Services", and other applicable policies.
 2. No more than three persons may be duly authorized and listed to sign for withdrawal from each special fund account. The list must be on record in the Business Office.
- I. Upon acceptance of a monetary contribution or gift, a special fund account will be created by the Volunteer Services Director and OSH Business Office in the Trust Fund Account maintained by the State Treasurer.
1. New special accounts will be established with a clear statement of the source of funds, the intent for the use of the funds, and a record of authorized signatures.
 2. Copies of relevant correspondence, wills, and other documents may be attached for retention in a permanent file in the Business Office.
 3. Monetary contributions to existing special fund accounts must be deposited by the Volunteer Services Director or designee in the Business Office to the designated account.
 4. The Business Office must issue a written receipt for all such deposits.

- J. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- K. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Contribution" for the purposes of this policy means a monetary gift.
- B. "Donation" for the purposes of this policy means a non-monetary in-kind product, good, or service gift.
- C. "Special Fund Account" means an account consisting entirely of donated monetary funds accounted for in the OSH Trust Fund Account maintained by the State Treasurer. Expenditures from these accounts are for budgeted expenditure limitations.
- D. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. RELATED OSH POLICIES AND PROTOCOLS

- 6.005 Deceased Patient
- 4.004 Patient Benevolent Fund
- 8.037 Patient Property and Valuables
- 4.008 Peggy Ross Trust Fund

V. REFERENCES

- Oregon Department of Administrative Services Facilities Manual. *Sales and solicitations in state office buildings and on state grounds*, 107-011-322. Author.
- Oregon Department of Human Services Volunteer Services Manual.
- Oregon Administrative Rules § 125-080-0010.
- Oregon Administrative Rule §§ 137-046-0100 — 137-046-0480.
- Oregon Administrative Rule §§ 943-060-0000 — 943-060-0120.
- Oregon Revised Statute §§ 98.302-98.436
- Oregon Revised Statute §§ 179.510 – 179.530.
- Oregon Revised Statute § 279A.

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Oregon Revised Statute § 279B.

Oregon Revised Statute § 279C.